



CHAPTER 36

An Act to make provision for loans to be made by local authorities for physical training and recreation in Great Britain. [7th July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The power conferred on local authorities by sub-section (4) of section four of the Physical Training and Recreation Act, 1937 (which relates to contributions by local authorities towards expenses of providing and maintaining gymnasiums, playing fields, swimming baths and other facilities) shall include power for a local authority to make a loan to a voluntary organisation for meeting (wholly or in part) any expenses of that organisation, being expenses towards which the local authority could make a contribution under that subsection:

Power to make loans to voluntary organisations.
1 Edw. 8. & 1 Geo. 6. c. 46.

Provided that a loan shall not be made in the exercise of that power for meeting any expenses of maintenance, or for meeting any other expenses which are not of such a description as to be properly chargeable to capital account.

(2) Any loan made by a local authority under the power referred to in the preceding subsection may be made upon such terms as the authority think fit.

(3) In subsection (9) of section ten of the said Act of 1937 (which relates to expenditure incurred by district councils in Scotland) the reference to expenditure incurred under that Act shall be construed as including a reference to expenditure incurred under that Act as extended by subsection (1) of this section.

Financial provisions.

11 & 12 Geo. 6. c. 26.
2 & 3 Eliz. 2. c. 13.
4 & 5 Eliz. 2. c. 60.

2. There shall be defrayed out of moneys provided by Parliament any increase attributable to this Act in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or under the Local Government (Financial Provisions) (Scotland) Act, 1954, as amended by the Valuation and Rating (Scotland) Act, 1956.

Interpretation.

3. In this Act the expressions " local authority " and " voluntary organisation " shall have the same meanings as those assigned to them in the Physical Training and Recreation Act, 1937.

Short title, citation and extent.

4.—(1) This Act may be cited as the Physical Training and Recreation Act, 1958.

(2) The Physical Training and Recreation Act, 1937, and this Act may be cited together as the Physical Training and Recreation Acts, 1937 and 1958.

(3) This Act shall not apply to Northern Ireland.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 3*d.* net

PRINTED IN GREAT BRITAIN

(37981)